

KAILA Founders Agreement Discussion Draft

Discussion Draft

Non-legal template for roles, ownership, contribution, and governance conversations

Important Note

This document is not legal advice and should not be signed as a final legal agreement without review by a qualified lawyer. It is a founder discussion draft to prevent confusion before serious work begins.

Purpose of the Agreement

The purpose of a founders agreement is to make expectations clear before major effort, money, time, or intellectual property is committed. Many early teams fail not because the idea is weak, but because roles, ownership, and decision rights are unclear.

Founding Principles

- Business validation comes before full app development.
- No founder should be treated as merely a helper if they are expected to carry core responsibility.
- Ownership should reflect contribution, risk, time commitment, and long-term responsibility.
- Important decisions should be documented.
- The team should protect trust, fairness, and transparency from the beginning.

Proposed Founder Roles

- Initiator/Product and Technology Lead - owns product vision, MVP design, development planning, and technical execution.
- Operations Lead - owns provider onboarding, support process, dispute handling, and service quality.
- Provider Acquisition Lead - owns recruitment of skilled workers and category supply.
- Marketing and Community Lead - owns brand awareness, social media, referrals, and client acquisition.
- Finance and Administration Lead - owns budgets, records, legal setup, and financial reporting.

Ownership Discussion Points

- Will ownership be equal or contribution-based?
- How will sweat equity be valued?
- Will equity vest over time so inactive founders do not keep a large share?
- What happens if a founder leaves after 3 months, 6 months, or 1 year?
- Who owns the code, brand, documents, provider list, and data?
- How will future investors or new founders affect ownership?

Recommended Vesting Concept

A simple structure can be discussed: founder shares vest over 4 years with a 1-year cliff. This means a founder earns ownership over time instead of receiving all ownership immediately. For an informal early team, a simpler milestone-based vesting model may be easier, but the principle is the same: long-term contribution should matter.

Decision-Making Rules

- Ordinary decisions may be decided by role owner.
- Major financial decisions require founder approval.
- Changes to ownership require unanimous written approval.
- Adding or removing a founder requires a formal meeting and documented decision.
- Changing the business model, brand, or pilot city requires majority or unanimous agreement depending on team preference.

Confidentiality

Founders should agree not to share sensitive documents, provider lists, financial plans, user data, code, or internal strategy outside the team without permission.

Intellectual Property

- Code created for KAILA should belong to the business entity once formed, subject to agreed founder rights.
- Brand assets, documents, provider records, user research, and product designs should be treated as KAILA assets.
- Pre-existing personal work should remain owned by the original creator unless formally transferred.

Founder Exit

- Define what happens when a founder becomes inactive.
- Define how unvested shares are returned or cancelled.
- Define whether departing founders can work on a competing idea.
- Define how disputes will be mediated before legal escalation.

Meeting Agenda for Agreement Discussion

- Confirm who is truly interested in being a founder versus adviser/helper.
- Discuss expected weekly time commitment.
- Assign 90-day validation responsibilities.
- Discuss ownership principles, not percentages first.
- Agree on what must be proven before building the MVP.
- Document next steps and revisit agreement after validation results.

Signature Placeholder

Founder names, roles, contributions, ownership terms, and signatures should be added only after legal review or after the team agrees to a formal preliminary arrangement.

Definition of Terms

These terms provide a shared vocabulary for reading and discussing the KAILA founder package.

KAILA

The proposed local services marketplace that helps clients find trusted local help and helps skilled workers become more visible.

Client

A person, household, business, or organization that posts a service need or hires a provider through KAILA.

Provider

A skilled worker, freelancer, technician, shop, or service professional who offers work through KAILA.

Service Request

A client post describing the job needed, location, budget, urgency, details, and optional photos or files.

Offer

A provider's response to a service request, including price, availability, scope notes, or proposed schedule.

Counter-Offer

A revised offer made when the provider or client proposes a different price, schedule, or service scope.

Marketplace

The two-sided system where clients and providers discover, evaluate, transact, and rate each other.

MVP

Minimum Viable Product; the simplest usable version of KAILA needed to test marketplace behavior.

Pilot

A limited real-world launch in one city or area used to validate demand, provider response, operations, and trust.

Concierge Pilot

A manual version of the marketplace run with simple tools such as forms, spreadsheets, Facebook, and Messenger before building the full app.

Verification

The process of checking provider identity, service information, work samples, permits, certificates, or references.

Rating

A post-job score or review used to build trust, measure reliability, and improve future matching decisions.

Dispute

A reported disagreement about price, quality, scope, completion, behavior, payment, or other job-related concerns.

Lead Credit

A future monetization unit that may allow providers to access or respond to qualified service opportunities.

Premium Profile

A future paid provider profile upgrade that may improve visibility, presentation, or trust signals.

Business Account

A future account type for shops, small businesses, teams, or organizations with recurring service needs or multiple providers.

Go/No-Go Criteria

The evidence-based thresholds used to decide whether to proceed, narrow the scope, redesign, or pause.